

STATE OF NEW YORK

4516--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 4, 2025

Introduced by M. of A. CUNNINGHAM -- Multi-Sponsored by -- M. of A. ALVAREZ -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to requiring public school districts to provide language assistance to limited English proficient parents of students

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 305 of the education law is amended by adding a new subdivision 57 to read as follows:

57. a. All school districts shall establish a language assistance program where limited English proficient parents would have effective access to communicate with teachers and school personnel. This comprehensive program shall include, but is not limited to:

(1) Providing that all frequently used forms and other written materials that are sent home to limited English proficient parents are in their primary language;

(2) Providing language assistance to limited English proficient parents in their primary language who call or come into school with concerns related to their child's schooling;

(3) Providing language assistance services to limited English proficient parents in their primary language to facilitate parent attendance at school-sponsored programs designed for communication with parents including, but not limited to, parent-teacher conferences, workshops and school fairs.

b. A notice of the availability of the language assistance programs for limited English proficient parents established pursuant to paragraph a of this subdivision shall be mailed to the homes of such limited English proficient parents in a notice written in their primary language.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 c. Each school district shall keep a record documenting its language
2 assistance program and shall submit a summary report annually to the
3 commissioner. Such record and report shall include, but not be limited
4 to:

5 (1) The number of limited English proficient parents who receive such
6 assistance;

7 (2) The number of limited English proficient households where one
8 parent is English language proficient;

9 (3) The number of complaints filed by limited English proficient
10 parents; and

11 (4) The number of bilingual personnel used to assist in the language
12 assistance and translation services.

13 d. The commissioner shall promulgate such rules and regulations as may
14 be necessary and proper to implement the provisions of this subdivision,
15 including but not limited to, the methodology to be used by each school
16 district to determine or assess the primary languages, the number of
17 limited English proficient parents, the percentage of limited English
18 proficient parents to students and the native language of such limited
19 English proficient parents, and a complaint procedure for any parent who
20 alleges a school's non-compliance with the provisions of this subdivi-
21 sion.

22 e. For purposes of this subdivision:

23 (1) "Primary language" means one of the five most common languages in
24 a school district, other than English, spoken and used to communicate,
25 by limited English proficient parents.

26 (2) "Limited English proficient parents" means parents or parent of a
27 minor child who attends public school and such parents or parent is
28 unable to communicate effectively in English with teachers and school
29 personnel at the school attended by such parent's child.

30 (3) "Parent" shall have the same meaning as "parental relation" in
31 subdivision ten of section two of this title.

32 f. Nothing in this subdivision shall prohibit a school district from
33 entering into a cooperative agreement with other school districts to
34 jointly establish such a language assistance program.

35 g. This subdivision shall only apply to school districts where non-
36 English speaking residents or limited English proficient parents consti-
37 tute more than five percent of the residents of such school district, as
38 determined by data from the two most recent federal decennial censuses.

39 § 2. This act shall take effect on the one hundred eightieth day after
40 it shall have become a law. Effective immediately, the addition, amend-
41 ment and/or repeal of any rule or regulation necessary for the implemen-
42 tation of this act on its effective date are authorized to be made and
43 completed on or before such effective date.